



General Assembly

February Session, 2026

Raised Bill No. 5542

LCO No. 2947



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING CRIMINAL AND SIMPLE TRESPASS ON
SCHOOL GROUNDS OR IN SCHOOL BUILDINGS.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 53a-107 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) A person is guilty of criminal trespass in the first degree when: (1)
4 Knowing that such person is not licensed or privileged to do so, such
5 person enters or remains in a building or any other premises after an
6 order to leave or not to enter personally communicated to such person
7 by the owner of the premises or other authorized person; or (2) such
8 person enters or remains in a building or any other premises in violation
9 of a restraining order issued pursuant to section 46b-15 or a protective
10 order issued pursuant to section 46b-16a, 46b-38c, 54-1k or 54-82r by the
11 Superior Court; or (3) such person enters or remains in a building or any
12 other premises in violation of a foreign order of protection, as defined
13 in section 46b-15a, that has been issued against such person in a case
14 involving the use, attempted use or threatened use of physical force
15 against another person; or (4) knowing that such person is not licensed

16 or privileged to do so, such person enters or remains on public land,
17 including on school grounds and any parking lot or athletic field or in
18 any school building on such grounds, after an order to leave or not to
19 enter personally communicated to such person by an authorized official
20 of the state, [or] a municipality or a local or regional board of education,
21 as the case may be.

22 (b) Criminal trespass in the first degree is a class A misdemeanor.

23 Sec. 2. Section 53a-108 of the general statutes is repealed and the
24 following is substituted in lieu thereof (*Effective October 1, 2026*):

25 (a) A person is guilty of criminal trespass in the second degree when,
26 knowing that such person is not licensed or privileged to do so, (1) such
27 person enters or remains in a building, including a school building, or
28 (2) such person enters or remains on public land, including on school
29 grounds and any parking lot or athletic field on such grounds.

30 (b) Criminal trespass in the second degree is a class B misdemeanor.

31 Sec. 3. Section 53a-109 of the general statutes is repealed and the
32 following is substituted in lieu thereof (*Effective October 1, 2026*):

33 (a) A person is guilty of criminal trespass in the third degree when,
34 knowing that such person is not licensed or privileged to do so: (1) Such
35 person enters or remains in premises which are posted in a manner
36 prescribed by law or reasonably likely to come to the attention of
37 intruders or are fenced or otherwise enclosed in a manner designed to
38 exclude intruders, or which belong to the state and are appurtenant to
39 any state institution, including a state-operated school building or on
40 such school grounds and any parking lot or athletic field on such school
41 grounds; or (2) such person enters or remains in any premises for the
42 purpose of hunting, trapping or fishing; or (3) such person enters or
43 remains on public land, including on school grounds and any parking
44 lot or athletic field or in any school building on such grounds, which is
45 posted in a manner prescribed by law or reasonably likely to come to

46 the attention of intruders or is fenced or otherwise enclosed in a manner
47 designed to exclude intruders.

48 (b) Criminal trespass in the third degree is a class C misdemeanor,
49 except that any person found guilty under subdivision (2) of subsection
50 (a) of this section shall be guilty of a class B misdemeanor and fined not
51 less than five hundred nor more than one thousand dollars.

52 Sec. 4. Section 53a-110a of the general statutes is repealed and the
53 following is substituted in lieu thereof (*Effective October 1, 2026*):

54 (a) A person is guilty of simple trespass when, knowing that such
55 person is not licensed or privileged to do so, such person enters or
56 remains in or on any premises without intent to harm any property,
57 including on school grounds and any parking lot or athletic field or in
58 any school building on such grounds.

59 (b) Simple trespass is an infraction.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	53a-107
Sec. 2	<i>October 1, 2026</i>	53a-108
Sec. 3	<i>October 1, 2026</i>	53a-109
Sec. 4	<i>October 1, 2026</i>	53a-110a

Statement of Purpose:

To clarify provisions concerning trespassing on school grounds or in school buildings.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]